

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 26, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 12, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk’s Office. There being no comment or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the applications to Finance Committee.

ORDINANCE –3rd READING – Amending Ordinance No. 4431, which established a new compensation schedule for members of the City Council of the City of Cheyenne, to clarify the manner in which compensation is to be computed and providing for an effective date. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4552)

ORDINANCE – 2nd READING – Amending certain sections of Chapter 44, Solid Waste, and Chapter 56, Noise Control, of Title 8, Health and Safety, and further amending certain sections of Chapter 8, Offenses Against Public Peace and Decency, and Chapter 12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate the potential imposition of a jail sentence for violation of specified code provisions. Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Dr. Aldrich moved to amend by removing Section 9.12.060, Shoplifting, seconded by Mr. Laybourn. Motion to amend failed due to a tie vote. Voting “yes” – Dr. Aldrich, Mr. Cook, Mr. Johnson, Mr. Laybourn and Dr. Rinne. Voting “no” – Mayor Collins, Mr. Esquibel, Mr. Roybal, Mr. Segrave and Mr. White. Main motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Johnson and Mr. Laybourn voting “no”. Public comment was made by: Mark Moody.

Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave.

ORDINANCE – 2nd READING – Creating Section 2.40.100, Public Defender and Representation of Needy Persons; Determination of Need, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, Specifying Public Defender Appointment Procedures and Standards for Representation in the Municipal Court. Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Cook and Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Johnson.

ORDINANCE –1st READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, modifying specified enforcement provisions regarding vehicle impoundment – referred to Public Services Committee. (Sponsor – Mr. Johnson)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 12th Filing, City of Cheyenne, Laramie County, Wyoming (located East of Converse Avenue and South of Storey Boulevard) (Postponed from February 12, 2024). Reporting for Public Services Committee, Mr. Roybal moved to adopt noting Planning Commission’s condition to provide an updated traffic study has been met and prior to the mylars being signed (a) an easement across Townsend Place Apartments LP be recorded to allow Wild Bluff to connect into Converse Avenue and (b) the plat map be modified to allow an added auxiliary lane and future roadway transition on the south side of Storey Boulevard from Converse Avenue to Ogden Road. A 10’ right-of-way width and/ or a perpetual utility and access easement shall be provided to allow the construction of the auxiliary lane as approved by the City Engineer, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#6384)

[CA] RESOLUTION – Approving a sponsorship by Bison Beverage for the Cheyenne Frontier Days Rodeo Events occurring July 19 through July 28, 2024 and July 18 through July 27, 2025. Motion (per Consent Agenda) carried. (#6385)

RESOLUTION – Requesting that the Wyoming State Legislature consider legislation authorizing the sale of alcoholic beverages with an alcohol by volume of 5% at grocery stores and convenience stores throughout the state. Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to adopt, seconded by Mr. Johnson. Motion failed. Voting “yes” – Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Segrave. Voting “no” – Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Mr. Roybal and Mr. White. Public comment was made by: Suzy Gudenkauf, Outlaw Liquors. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave.

[CA] RESOLUTION – Regarding the proposed Cowboy Solar Project, authorizing the Mayor to pursue and secure possible impact assistance funds on behalf of the City as provided by Wyoming law. Motion (per Consent Agenda) carried. (#6386)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and submit the Wyoming Division of Victim Services Funding Application State Fiscal Year 2025 and 2026. Motion (per Consent Agenda) carried. (#6387)

RESOLUTION – Approving the Environmental Protection Agency Climate Pollution Reduction Planning Grant in the amount of one million dollars to pursue greenhouse gas reduction plans and initiatives such as a community solar project. Dr. Aldrich advised the item was reviewed under other items for the agenda at the February 20, 2024 Finance Committee meeting, therefore provisions of Title 2 of City Code had been met. Dr. Aldrich moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. Laybourn. (#6388)

[CA] RESOLUTION – Approving the Department of Energy Efficiency and Conservation Block Grant Program Grant for lighting upgrades for the Cheyenne Civic Center – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Expressing the support of the Governing Body for City staff to review and rewrite the City’s Parking ordinances for the purpose of introducing Paid On-Street Parking in Downtown Cheyenne and directing City staff to submit the ordinance rewrite for Governing Body consideration – referred to Finance Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Expressing the support of the Governing Body for an Action Plan to address deficiencies regarding sidewalks in the Downtown Development District – referred to Finance Committee. (Sponsors – Mr. Johnson, Mr. Laybourn and Mr. Segrave)

[CA] Agreement between the City of Cheyenne and Whitney Ranch Third & Fourth Filing, LLC for a temporary construction easement for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Benjamin D. Ward and Kimberly Ann Ward for a temporary construction easement at 4608 James Drive for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Jeff Trefren and Katrina Crossland for a temporary construction easement at 5700 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Jeff T. Trefren for a temporary construction easement at 5708 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Braidon Myers and Heather Myers for a temporary construction easement at 5420 Dell Range Boulevard for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Contract Modification #1 to Contract #3920 between the City of Cheyenne and Charles E. Bales regarding street improvements located adjacent to 3618 Charles Street (Postponed from February 12, 2024). Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated February 20, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#3920)

[CA] Contract Modification #3 to Contract #6798 between the City of Cheyenne and Trihydro Corporation to extend the term for one (1) additional year for additional Happy Jack Landfill environmental monitoring services (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$94,242.00). (#6798)

[CA] Consideration of Bid #S-7-24 for an agreement between the City of Cheyenne and JTL Group Inc d/b/a Knife River, for the Airport Parkway Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$3,601,036.35). (#7919)

[CA] Consideration of Bid #S-1-24 for an agreement between the City of Cheyenne and Reiman & Aztec JV Limited Partnership, for the Dell Range/Van Buren Improvements Project (2019-2022 Optional 1% Sales Tax Fund, American Rescue Plan Federal Recovery Funds and Developer Joint Projects) – referred to Finance Committee.

[CA] Consideration of Bid #S-11-24 for an agreement between the City of Cheyenne and Mechanical Systems, Inc., for the Cheyenne Sanitation Transfer Station - Lift Station Installation Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-12-24 for multiple twenty (20) passenger buses for the City of Cheyenne Transit Program (Transit Program Funds) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Mr. Johnson commented on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held March 11, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-01-402 exist for about 923.93 acres of land located south of I-80 adjacent to Roundtop Road.

Under other business:

City Clerk Kris Jones advised the following items were being introduced for the purpose of being referred to the March 4, 2024 Finance Committee meeting: Resolution supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in the purchase of snow removal equipment.

Resolution supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in Cheyenne Regional Airport's Master Plan and Airport Layout Plan.

Public comment was made by Ed Galavotti.

The following members of the governing body made comments: Dr. Aldrich, Mr. Cook, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 6, 2024